

**Superior Court of the State of California
County of Orange**

**TENTATIVE RULINGS FOR DEPARTMENT C32
JUDGE LEE L. GABRIEL, Dept. C32**

Date: July 7, 2026

APPEARANCES: Department C32 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/mediarelations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") are also available at <https://www.occourts.org/mediarelations/aci.html>.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

All hearings are open to the public.

If you desire a transcript of the proceedings, you must provide your own court reporter (unless you have a fee waiver and request a court reporter in advance). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

These are the Court's tentative rulings. They may become an order if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If the parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling **(657-622-5232)**. The tentative ruling will then become the order of the Court upon a party or parties informing the Court that all parties submit to the Court's tentative ruling.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1.	HARRIS VS. FRESENIUS VASCULAR CARE, INC. 2023-01363455	1. MOTION TO APPEAR PRO HAC VICE 2. MOTION TO APPEAR PRO HAC VICE 3. MOTION TO APPEAR PRO HAC VICE The applications of Hannah F. Preston, Megan Heinsz, and James F. Bennett to appear pro hac vice as counsel for defendants Fresenius Vascular Care, Inc., Fresenius Medical Care Holdings, Inc. dba Fresenius Medical Care North America, Fresenius Vascular Care Tustin MSO, LLC and Paul Toomey in this matter are hereby GRANTED. Plaintiff's arguments in opposition to the applications lack merit for the reasons stated in Defendants' reply. Plaintiff repeatedly mentions the applicants' purported admissions in California over the past <i>decade</i>, without identifying those admissions. However, Rule 9.40 is only concerned with prior admissions within the past two years. (See Cal. Rules of Court, Rule 940(d)(5).) During that time frame, the applicants were admitted pro hac vice no more than three other times. The applicants have each satisfied all the requirements of California Rules of Court, Rule 9.40. Defendants are ordered to give notice.
2.	DOE VS. IHERB, LLC. 2025-01505285	1. MOTION TO STRIKE Defendants iHerb, LLC and Trent Kruse's Motion to Strike Plaintiff's Jane Doe Designation is DENIED as MOOT. Defendants filed a motion to strike Plaintiff's Jane Doe Designation with respect to Plaintiff's First Amended Complaint (FAC). On 6/26/26, Plaintiff filed a Second Amended Complaint. (ROA 71.) Thus, to the extent Defendants' motion refers to the designation in the FAC it is moot. 2. MOTION ALLOWING PLAINTIFF TO USE PSEUDONYM Plaintiff alleges she may have been the victim of a sexual assault by her employer's Senior Vice President during a work event. (SAC ¶¶ 20-32.) Plaintiff moves to proceed pseudonymously in this action as "Jane Doe." The right to access court proceedings necessarily includes the right to know the identity of the parties. (<i>Dept. of Fair Emp. and Housing v. Superior Court of Santa Clara County</i> (2022) 82 Cal.App.5th 105, 111 [citation omitted].) "Because of the inherently sensitive nature of some proceedings, statutes specifically allow for

keeping certain parties’ identities confidential.” (*Id.* at p. 110 [citing statutes].) “Even in the absence of a statute, anonymity for parties may be granted when necessary to preserve an important privacy interest.” (*Id.* [citations omitted].)

“Before a party to a civil action can be permitted to use a pseudonym, the trial court must conduct a hearing and apply the overriding interest test: A party’s request for anonymity should be granted only if the court finds that an overriding interest will likely be prejudiced without use of a pseudonym, and that it is not feasible to protect the interest with less impact on the constitutional right of access. In deciding the issue the court must bear in mind the critical importance of the public’s right to access judicial proceedings.” (*Id.* at pp. 111-112 [citation omitted].)

Plaintiff requests to proceed in this action under a pseudonym due to the nature of the allegations and the sensitive and private nature of her mental health diagnoses and treatment following the sexual assault.

Defendants contend the potential for reputational harm and stigma are insufficient to support proceeding anonymously and Plaintiff has failed to demonstrate any risk of such harm. Defendants further contend proceeding anonymously would prejudice Defendants in their investigation of the case and in conducting discovery, particularly with respect to identifying Plaintiff to third parties.

As an initial matter, Defendants do not dispute they are aware of Plaintiff’s identity. “Since the employee’s identity is known to the defendant, proceeding anonymously would not similarly intrude on the defendant’s rights.” (*Dept. of Fair Emp. and Housing, supra*, 82 Cal.App.5th at p. 110.)

“[A]llowing a party to litigate anonymously impacts the First Amendment public access right,” however, which then requires the analysis set forth above. “Courts in California have recognized at least two interests . . . as potentially sufficient to allow for redaction of names. These are: first, maintaining privacy of highly sensitive and potentially embarrassing personal information and second, protecting against the risk of retaliatory harm. These interests have also been recognized in the Ninth Circuit.” (*Roe v. Smith* (2025) 116 Cal.App.5th 227, 239-240 [cleaned up].)

In the Ninth Circuit, “[c]ourts have generally permitted to proceed anonymously when their claims involved allegations of sexual assault or rape.” (*Doe v. Rose* (C.D. Cal. June 17, 2026) 2016 WL 9137645) [listing cases]; *see also Doe v. United Airlines, Inc.* (D. Nev. Aug. 21, 2018) 2018 WL 3997258 [“District Courts within the Ninth Circuit ‘uniformly allow plaintiffs alleging sexual assault to proceed under pseudonyms.’”].)

Defendants rely on *Roe v. Smith* (2025) 116 Cal.App.5th 227 to argue reputational harm related to sexual assault allegations do not outweigh the public's interest in disclosure. *Smith* is distinguishable, however, as it involved a cause of action for defamation based on rumors of sexual assault by a student against another student. (116 Cal.App.5th 227, 234.) The plaintiff brought the action after the school's investigation found he was "not responsible" for any of the claims brought against him. (*Ibid.*)

This action does not involve the reputation of a plaintiff who was accused of sexual assault, but a plaintiff who alleges she herself was sexually assaulted and that the assault led to her mental disability for which she now receives treatment.

Sexual assault is a highly sensitive and personal, and the Court finds a pseudonym is appropriate here to maintain Plaintiff's privacy interests. Moreover, while the public has some interest in Plaintiff's identity, there is also a strong interest in encouraging victims of sexual assault to bring claims against their assailants.

Defendants primarily contend proceeding anonymously would cause significant prejudice to Defendants in their investigation of the case. Defendants contend, for example, their investigation would be impaired if prevented from identifying Plaintiff in discovery, including with respect to identifying witnesses and obtaining medical records.

As an initial matter, Plaintiff requests:

- (1) She be allowed to use the pseudonym Jane Doe in depositions, hearings, and all documents filed on the public docket;
- (2) The Court adopt procedures regarding confidential disclosure of her true name and other identifying characteristics; and
- (3) The Court enter a corresponding Protective Order governing the disclosure of confidential information in this action.

(Mtn. at 1:10-15.)

As such, it does not appear Plaintiff is requesting a blanket use of a pseudonym for all purposes, including discovery. Plaintiff also states she is "willing to stipulate to any reasonable condition Defendants would need for discovery purposes." (Reply at 5:12-13.)

While the Court is inclined to grant the motion, the Court intends to further discuss and clarify the scope of Plaintiff's request with counsel.

3.	JPMORGAN CHASE BANK, N.A. VS. SVOBODA 2024-01439224	MOTION TO SET ASIDE/VACATE JUDGMENT Plaintiff JPMorgan Chase Bank, N.A.’s motion to vacate the judgment obtained on March 12, 2025, and for order of dismissal is DENIED without prejudice. On 9-16-25, the court denied, without prejudice, Plaintiff’s prior motion to vacate judgment and enter dismissal for failure to include a supporting memorandum. (ROA 33.) Plaintiff’s instant Motion again fails to include a Memorandum of Points and Authorities in support of the Motion as required by California Rules of Court rule 3.1113. Specifically, Rule 3.1113, subdivision (a) provides, “A party filing a motion ... must serve and file a supporting memorandum. The court may construe the absence of a memorandum as an admission that the motion or special demurrer is not meritorious and cause for its denial and, in the case of a demurrer, as a waiver of all grounds not supported. (Cal. Rules of Court, rule 3.1113, subd. (a).) Further, Rule 3.1113, subd. (b) provides, “The memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.” (Cal. Rules of Court, rule 3.1113, subd. (b).) Without the required Memorandum of Points and Authorities providing the statutory, legal and factual basis for the Motion, the court cannot rule on the merits of whether to vacate judgment and enter dismissal. Plaintiff to give notice.
4.	ALLY BANK, A CORPORATION VS. RIVERA 2025-01535491	APPLICATION FOR WRIT OF POSSESSION AND HEARING Plaintiff Ally Bank’s unopposed application for a writ of possession is DENIED. Plaintiff seeks issuance of a writ of possession directing defendant Yamil Alberto Colon Rivera to transfer possession of a 2018 Mercedes-Benz GLE-Class, VIN 4JGDA5JB1JB126817, to Plaintiff. Plaintiff also seeks an order deeming good cause exists for a brief examination of Defendant. Except as otherwise provided, “no writ shall be issued under this chapter except after a hearing on a <i>noticed</i> motion.” (Code Civ. Proc., § 512.020, subd. (a) [emphasis added].) Plaintiff has not established that Defendant received notice of this hearing. A proof of service is not attached to the notice of hearing,

		the application or any of the supporting documents. Nor has one been filed separately. Because Plaintiff failed to provide notice of this hearing the application is denied.
5.	GOLDFIELD VS. ROMERO MOTORS, LLC. 2024-01435095	MOTION FOR TERMINATING SANCTIONS Defendant Romero Motors, LLC dba Oremor Capistrano LLC dba Capistrano Valley Toyota’s motion for terminating sanctions against plaintiff Daniel Goldfield is DENIED without prejudice. “[T]erminating sanctions are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party.” (<i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal.App.4th 486, 496.) “The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. ‘Discovery sanctions “should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.”’ [Citation.] If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. ‘A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.’ [Citation.]” (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992 (<i>Doppes</i>) (Footnote 5 omitted.)) Before issuing terminating sanctions, the court should usually grant lesser sanctions such as orders staying the action until the derelict party complies, or orders declaring matters as admitted or established if answers are not received by a specified date, often accompanied with costs and fees to the moving party. (<i>Deyo v. Kilbourne</i> (1978) 84 Cal.App.3d 771, 796.) Defendant has shown Plaintiff has violated the court’s 3-6-26 order granting Defendant’s Motion to Compel Responses to Form Interrogatories, Set One; Special Interrogatories, Set One; Requests for Production, Set One; and imposing sanctions on Plaintiff. (Solandt Decl., ¶ 8, Ex. K.) Neither party appeared at the hearing and on 3-10-26, the court clerk emailed the court’s 3-6-26 order to the parties. (ROA 45.) Defendant’s counsel states he did not appear at the hearing because on 12-19-25, Plaintiff’s counsel advised Defendant’s counsel that Plaintiff had passed away. (Solandt Decl., ¶ 8-9.) To date, no responses or sanctions have been received. (Solandt Decl., ¶ 8.) Terminating sanctions are appropriate where violation of the court’s order is willful. (<i>Doppes, supra</i>, 174 Cal.App.4th at 992.) Since Plaintiff has passed away and cannot verify the responses, the court

		cannot find the violation is willful. Therefore, the request for terminating and monetary sanctions is DENIED. Plaintiff's counsel is ORDERED to appear at the hearing to discuss whether in light of the passing of Plaintiff, the Complaint will be dismissed or a personal representative or successor in interest will be substituted for decedent. Moving Defendant to give notice.
6.	ZHANG VS. KING 2024-01430779	1. MOTION FOR LEAVE TO INTERVENE Intervenor Daniel Belshaw's Motion for Leave to Intervene is GRANTED. Intervenor's requests for judicial notice are granted. "At any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice. However, a person who is not a party to the action shall obtain leave to intervene from the court at or before the time the party brings the motion to expunge the notice. Evidence or declarations may be filed with the motion to expunge the notice." (Code Civ. Proc., § 405.30.) Intervenor moved for leave to intervene and to expunge the notice at the same time. Thus, his Motions are timely. "The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied: [¶] (A) A provision of law confers an unconditional right to intervene. [¶] (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties." (Code Civ. Proc., § 387(d)(1).) Intervenor has a sufficient interest in the litigation to allow intervention. A property owner whose property has been mistakenly encumbered by a lis pendens clearly has such an interest, as the lis pendens "acts as a cloud against the property, effectively preventing sale or encumbrance until the litigation is resolved or the lis pendens is expunged." (<i>Amalgamated Bank v. Superior Court</i> (2007) 149 Cal.App.4th 1003.) Thus, the Motion is granted. 2. MOTION TO EXPUNGE LIS PENDENS Intervenor Daniel Belshaw's Motion to Expunge Lis Pendens is GRANTED.

The Lis Pendens recorded in Document No. 2025000167279 in the official records of the County of Orange is ORDERED expunged.

Intervenor's requests for judicial notice are granted.

Plaintiffs' unserved opposition is considered; however, Plaintiffs are cautioned to serve any future papers on all parties. Additionally, Plaintiffs improper requests for affirmative relief within their opposition are not considered.

"Any notice of pendency of action shall be void and invalid as to any adverse party or owner of record unless the requirements of Section 405.22 are met for that party or owner and a proof of service in the form and content specified in Section 1013a has been recorded with the notice of pendency of action." (Code Civ. Proc., § 405.23.) "Except in actions subject to Section 405.6, the claimant shall, prior to recordation of the notice, cause a copy of the notice to be mailed, by registered or certified mail, return receipt requested, to all known addresses of the parties to whom the real property claim is adverse and to all owners of record of the real property affected by the real property claim as shown by the latest county assessment roll." (Code Civ. Proc., § 405.22.) Section 1013a requires proof of service to be shown by an affidavit or certificate "setting forth the exact title of the document served and filed in the cause" or by service by the clerk of a court of record. Plaintiffs have failed to file a proof of service of the recordation of lis pendens. Thus, the lis pendens is void and invalid and should be expunged.

Assuming arguendo, the lis pendens was not void and invalid, Plaintiffs have failed to present sufficient evidence to establish a probable validity of their claims as to Intervenor. Code of Civil Procedure section 405.31 mandates that "the court shall order the notice expunged if the court finds that the pleading on which the notice is based does not contain a real property claim." A "real property claim" is defined as "the cause or causes of action in a pleading which would, if meritorious, affect [¶] (a) title to, or the right to possession of, specific real property." (Code Civ. Proc., § 405.4.) "The claimant shall have the burden of proof" in expungement proceedings. (Code Civ. Proc., § 405.30.) "Plaintiff may establish the prima facie merit of his action by competent material allegations in a verified complaint, by affidavit, or by other proof allowed by the trial court." (*McKnight v. Superior Court* (1985) 170 Cal.App.3d 291, 299.)

Plaintiffs' First Amended Complaint is not verified and they present no affidavit in support of their opposition. Plaintiffs claim the granting of the writ of attachment is also insufficient proof because the facts supporting a claim for money based contracts are not analogous with a claim for constructive trust and the Court found probable validity due to Defendant being in default. Thus, Plaintiffs have failed to demonstrate a probable validity of their constructive

		trust claim, which is the only claim which purports to affect the title of the properties. Accordingly, the lis pendens is expunged.
7.	WEBER VS. MORADO 2025-01511904	DEMURRER TO FIRST AMENDED COMPLAINT Defendants Corinne Morado, Gencare Connects, Inc., and Daian Corporation's Demurrer to Plaintiff's First Amended Complaint is CONTINUED to 8/4/26, at 9:00 a.m. in Department C32 as Defendants' counsel did not sufficiently meet and confer prior to filing the demurrer. Before filing a demurrer, the moving party shall meet and confer with the opposing party in person, by telephone, or by video conference at least 5 days before a responsive pleading is due to see if a resolution can be reached on the objections to the pleading. (Code Civ. Pro., § 430.41, subds. (a), (a)(2).) Counsel for Corinne Morado, Gencare Connects, Inc., and Daian Corporation states his office sent Plaintiffs' counsel a letter setting forth grounds for demurrer on 1/26/26. (Tong Decl., ¶ 2, Ex. A.) Counsel then attempted to follow up with Plaintiffs' counsel by telephone by leaving voicemails and also sending emails. (Tong Decl., ¶ 2, Ex. B.) Plaintiffs' counsel did not return his phone calls or email. (Tong Decl., ¶ 3.) This does not satisfy the meet and confer requirement. The Court ORDERS the parties to meaningfully meet and confer in person, by telephone, or by video conference (email/letter is insufficient) concerning the issues raised in the demurrer. Defendants are to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties' meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will construe this to mean that the issues have been resolved and will take the demurrer off-calendar.
8.	LAW OFFICES OF MARK B. PLUMMER, PC VS. ALAI 2018-01002061	MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION The Motion for Summary Judgment or Adjudication of the First Amended Cross-Complaint (FACC) of Nili N. Alai, M.D. (Alai) and Siamak Nabili, M.D. (Nabili) by Cross-Defendants Law Offices of Mark B. Plummer (Law Office) and Mark B. Plummer (Plummer) (sometimes collectively "Movants") is DENIED. Movants' request for judicial notice is granted as to the court records specified therein. (Evid. Code § 452.)

Procedural History:

This case was initiated in June 2018 by the Plaintiff Law Office's complaint against Defendants Alai and Nabili alleging failure to pay attorney fees in the amount of approximately \$30,000.00. Alai and Nabili cross-complained alleging various breaches of duty by the Law Office and Plummer related to their representation of Defendants in several lawsuits.

Both sides have aggressively litigated the dispute, resulting in an extraordinary number of filings and hearings. As of 6/26/26, the Court's case management system reflects over 2,000 docket entries including more than 125 minute orders. The Court has held at least 50 hearings on motions, not including ex parte applications. The parties' dispute now includes two other lawsuits, Orange County Case Nos. 2020-01141868 and 2025-01469232.

The Court has repeatedly admonished the parties for engaging in harassment and delay tactics rather than litigating the merits of their case. Both sides have been repeatedly warned about filing documents which violate the Code of Civil Procedure and/or Rules of Court.

The Court partially granted Plaintiff/Cross-Defendants' motion to deem Alai a vexatious litigant as to Alai's claims against former Cross-Defendant Jocelyn Plummer only. (2/13/24 Minute Order.) The Court denied Alai's motion to deem Plaintiff a vexatious litigant because it found the Plaintiff Law Office is a corporate entity not subject to the vexatious litigant statute. (11/25/25 Minute Order.)

On 7/10/23, Movants filed a prior "Motion for Summary Adjudication" regarding the FACC, which was initially set for hearing on 3/26/24 then continued to 4/16/24. Although labeled a motion for summary adjudication, the motion sought adjudication in Movants' favor on "each of the 7 causes of action" in the FACC, as well as a single cause of action in the Complaint. Therefore, the prior motion was a motion for summary judgment as to the entire FACC, not merely summary adjudication.

In April 2024, the Court issued a tentative ruling to deny the prior motion, held a hearing, and took the prior motion under submission. However, the Court of Appeal stayed proceedings in the trial court on 4/24/24 and this Court issued a minute order on 4/29/24 stating the prior motion was no longer under submission and staying its ruling on the motions. The Court never issued a final order on the merits of the prior motion.

Trial is set for 9/18/26.

Movants Failed to Obtain Leave to File Second Dispositive Motion:

Rather than requesting a new hearing date or asking the Court to resume its under submission consideration of the 7/10/23 motion, Movants filed a new motion for summary judgment/adjudication of the FACC containing substantially new and different arguments on 2/19/26.

Code of Civil Procedure section 437c(a), amended effective 1/1/25, states in part:

“(4) A party shall not bring more than one motion for summary judgment against an adverse party to the action or proceeding. This limitation does not apply to motions for summary adjudication. (5) Notwithstanding any other provision of this section, on motion or application of any party and a showing of good cause, the court may grant leave for the moving party to bring an additional motion for summary judgment. The moving party shall serve the notice and supporting papers for any such additional motion in accordance with paragraph (2) of subdivision (a).”

Here, Movants did not file a motion or application seeking leave to file a second motion for summary judgment regarding the FACC. Rather, they obtained the benefit of the Court’s prior tentative ruling and revised their motion, filing a second motion without leave of Court. This caused a substantial additional burden to opposing parties and the Court. Moreover, it allowed Movants an unfair opportunity to revise their motion after the Court already held argument and issued a tentative ruling denying the motion.

Movants’ Improper Service of Moving Papers:

Code of Civil Procedure section 437c(a)(2) states in part, “Notice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing.”

Cross-Complainant Alai’s new counsel filed a notice of association on 1/12/26 stating their email addresses were jbohm@bohmwildish.com and efile@bohmwildish.com.

On 2/19/26, Plummer’s office served the present motion via OneLegal eservice to eserve@bohmwildish.com as well as to Alai and Nabili’s personal emails. (Reply, Ex. A – OneLegal receipt.) Although the proof of service attached to the motion identifies the Bohm Wildish “efile” email address, there is no service receipt showing the document was sent to that email address.

Alai’s counsel was aware of the motion because Plummer’s office emailed a Word version of the separate statement, and Alai’s counsel downloaded the documents from the Court website. Alai’s

counsel declares that no one in their office received eservice of the moving papers and exhibits – only the Word separate statement.

Movants’ Notice and Separate Statement are Vague and Violate the Rules of Court:

The California Rules of Court, Rule 3.1350(b) states,

“If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.”

“(1) The Separate Statement of Undisputed Material Facts in support of a motion must separately identify:

(A) Each cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion; and

(B) Each supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion.” (Rule 3.1350(d)(1).)

As the Court noted in its April 2024 tentative ruling regarding Movants’ prior motion for summary judgment/adjudication, Movants’ separate statement should be in “numerical sequence.” (Rule 3.1350(d)(3).)

Code of Civil Procedure section 437c(f)(1) states the grounds upon which a party may move for summary adjudication:

“A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.”

Here, the notice of motion states the following:

“This motion will be based on the grounds that the Statute of Limitations expired on all claims in the Cross-Complaint before it was filed. Additionally, each [sic] the causes of action in the First Amended Complaint is defective because they all fail to identify any damages and also lack other requirements. (Specifically, Cross-Complainants claimed they had suffered damages on or about March

2017 [EXHIBIT Q – First Amended Cross-Complaint; ¶38, ¶39, ¶40, ¶41, ¶49, ¶51, ¶52, ¶53, ¶56, ¶57, ¶76, ¶79, ¶80, ¶81, ¶82, ¶83, ¶84, ¶85, ¶87, ¶88, ¶89, ¶90, ¶92, ¶93, ¶94, ¶95, ¶96, ¶97, ¶98, ¶101, ¶102, ¶105, ¶106, ¶107 and ¶108], but did not file the subject Cross-Complaint until November 18, 2018 [EXHIBIT P – Cross-Complaint], which is well past the 1-year Statute of Limitations provided in Code of Civil Procedure §340.6.” (Motion, p. 2.)

Movants’ notice asserts the entire FACC is barred by the statute of limitations. However, it is unclear whether Movants seek summary adjudication of any other issues, and if so what specific issues are being raised. Movants assert “all” causes of action “fail to identify any damages” “lack other requirements.” “Specifically,” the FACC alleges damages “suffered...on or about March 2017...but did not file the [FACC] until November 18, 2018...which is well past” the statute of limitations. Therefore, it is unclear whether Movants contend the FACC fails to allege damages because the damages claim is untimely or on some other grounds. It is also unclear if Movants contend the other claims generally lack merit, fail to address an issue of duty, or if an affirmative defense bars the claim. Such vagueness is highly prejudicial for the Court’s ability to analyze the motion and for Alai and Nabili’s ability to respond to it.

Movants’ separate statement includes separate headings for the statute of limitations and each cause of action. It does not reflect the notice of motion “verbatim” as required by Rule 3.1350(b). Moreover, the separate statement re-starts the numbering of facts for each issue, rendering it difficult for the Court and opposing parties to determine which facts are being cited in support of Movants’ arguments in the motion. Finally, the motion largely cites the underlying evidence rather than the undisputed facts. Combined, these issues make it difficult for Alai and Nabili to respond to the motion by pointing to disputed facts in opposition.

The Motion’s Formatting Violates the Rules of Court:

The Court has previously admonished the parties about improper font size and page formatting issues. (12/2/25 and 12/30/25 Minute Orders.) In this and the related lawsuits before this Court, both parties have previously violated these rules in an apparent effort to circumvent page limits.

The present motion and reply violate the California Rules of Court (hereafter “Rules”) including Rule 2.108. A motion complying with Rule 2.108 (1.5 or double-spaced with line numbers aligned with the text) should have no more than 28 numbered lines per page. Here, the motion includes 28 line numbers along the sides of each page, but the lines of text do not align with the line numbers such that there are actually more than 30 lines per page. For example, page 7 of the motion has 31 lines of text.

	The motion includes 16 pages of argument, which is within the 20-page limit for a summary judgment motion. (Rule 3.1113(d).) However, Mr. Plummer's use of improper line spacing makes it difficult for the Court to determine whether the page limit would have been violated if the line spacing was appropriate. The Court may impose sanctions for violation of the Rules of Court. (Rule 2.30(b).) This is the final warning to Mr. Plummer to strictly comply with all formatting requirements of the Rules of Court, at risk of incurring sanctions and/or having his nonconforming filings disregarded by the Court. For all of the foregoing reasons, the motion is denied.
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